

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Commissioner Sharon M. Anderson
Temporary Judge Catherine Evans

Date: 05/27/2026

Court Room Rules and Notices

#	Case Name	Tentative
1	De Leon – Trust; 30-2022-01266610	MOTION TO DISMISS
2	Garcia – Trust; 30-2025-01471869	DEMURRER Respondent Ulisses Gonzalez’ Demurrer (ROA 30) is OVERRULED. Respondent Ulisses Gonzalez (Respondent) demurs to all causes of action in the petition filed by Jennifer Macy and Elaine G. Rodriguez (collectively Petitioners) on the ground each claim fails to state sufficient facts because the petition does not provide details regarding the alleged individual misconduct by Respondent but, rather, generally alleges misconduct by “RESPONDENTS”—a term defined in the petition as meaning Ulisses and his mother Martha Garcia, who is also a respondent. (Petition at 2:19-25.) The petition includes the following allegations of wrongdoing against the respondents: (1) “[T]he purported TRUST was executed as a direct result of undue influence exerted by RESPONDENTS over DECEDENT.” (ROA 2 at 4:19-21.) (2) “[T]he purported TRUST was to RESPONDENTS’ own benefit and to the detriment of DECEDENT’s children.” (ROA 2 at 4:21-23.) (3) “RESPONDENTS occupied the positions of supportive wife and step-son, respectively, to DECEDENT during his declining physical and mental health. DECEDENT reposed trust and confident in RESPONDENTS during a time of vulnerability, which RESPONDENTS used to influence DECEDENT to execute the TRUST in their favor.” (ROA 2 at 5:18-22.)’ (4) “RESPONDENTS actively procured the purported TRUST as part of a pattern of conduct aimed at gaining control of DECEDENT’s major assets, including real property, personal property,